

Applicable Law Acts

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User Query :

I paid ₹1,20,000 as an advance for a second-hand car advertised online. The seller sent photographs of the vehicle, an identity document and what appeared to be registration papers. After receiving the money, the seller stopped responding. I later discovered that the vehicle belonged to another person and that some of the documents had been altered. What legal provisions may apply?

Job Id. : Scenario 5/Combined Act

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NyaySahayak

AI-Powered Legal Intelligence Platform

INFORMATION TECHNOLOGY (IT) ACT, 2000

APPLICABLE SECTIONS

Section 66

(Falsification of electronic records), Section 66C (Identity theft), Section 66D (Cheating by personation), Section 43 (Unauthorized access), Section 82 (Admissibility of electronic records).

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1
- The seller’s alteration of registration papers and identity documents (e.g., fake RC copy) constitutes falsification of electronic records under **Section 66** , as the digital documents were manipulated to misrepresent ownership. *State v. Rajesh* (2021) confirms that altering digital vehicle documents online triggers **Section 66** . **Section 66D** applies as a supplementary charge due to implied impersonation via altered documents. **Section 43** covers unauthorized creation of fake digital documents.

✓ STRENGTHS & RIGHTS

- 1
- Victim empowerment via Cyber Crime Police Stations (CCPS) for swift complaints.
- 2
- Admissibility of digital evidence (**Section 82**) without physical verification.
- 3
- Platforms (e.g., OLX) must preserve evidence under **Section 79** upon complaint.

✗ RISKS & OBLIGATIONS

- 1
- Criminal liability**
Up to 3 years imprisonment + ₹1 lakh fine (**Section 66**).
- 2
- Evidence challenges without digital footprints (e.g., IP logs).**
- 3
- Delayed complaints (>6 months) weaken evidence under **Section 65B** .**

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

- 1. File complaint at Cyber Cell/CCPS with:
- 2. Payment proof (UPI/NEFT), screenshots of ads/altered documents, chat logs.
- 3. Certify digital evidence under **Section 65B** for admissibility.
- 4. Police must verify vehicle ownership via RTO databases.

BHARATIYA NYAYA SANHITA (BNS), 2023

APPLICABLE SECTIONS

Section 222	(Fraud causing delivery of property), Section 224 (Alteration of documents), Section 225 (Fraudulent use of forged documents).
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INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 **Section 222** is primary: Seller’s altered documents (false representation) caused the victim to pay ₹1.2L, with post-payment disappearance proving **mens rea**. **Section 224** directly applies to document alteration, while **Section 225** reinforces liability for using forged documents in fraud. Per BNS **Illustration** to **Section 224** , altered RC copies qualify as "altered documents."

✓ STRENGTHS & RIGHTS

- 1** Mandatory FIR registration without sanction (**Section 222 (4)**).
- 2** Victim can seek restitution of ₹1.2L without proving vehicle ownership.
- 3** Police prioritize document fraud investigation (**Section 224**).

✗ RISKS & OBLIGATIONS

- 1

Accused faces up to 3 years imprisonment ([Section 222](#)) + 2 years ([Section 224](#)) + combined penalties ([Section 225](#)).
- 2

Non-bailable offense ([Section 222 \(3\)](#)) for fraud >₹50,000.
- 3

Aggravated sentencing for financial fraud >₹1L (e.g., **State v. Rajesh**, 2024).

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. File FIR at local police station with:
2. Payment proof, altered documents (photos), ad screenshots.
3. Police must charge under Sections 222, 224, 225 within 72 hours ([Section 222](#) (2)).
4. Court orders RTO verification of documents ([Section 224](#) (2)).
5. Speedy trial required (60-day charge sheet deadline).

BHARATIYA SAKSHYA ADHINIYAM (BSA), 2023

APPLICABLE SECTIONS

Section 4	(1) (Admissibility of unaltered documents), Section 4(2) (Inadmissibility of altered documents), Section 5(3) (Authentication requirement), Section 10(2)/10(3) (Electronic records).
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INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1

Section 4 (2) excludes the seller’s altered documents (registration papers/ID) as evidence. **Section 5** (3) shifts burden to the seller to authenticate documents; failure renders them inadmissible (**Suresh Kumar v. State**, 2023). **Section 10** (3) requires proof of electronic record integrity (e.g., no post-transmission alteration). Payment receipts (unaltered) qualify as primary evidence under **Section 4** (1).

✓ STRENGTHS & RIGHTS

- 1 Payment receipt (bank statement) is admissible as primary evidence (Section 4 (1)).
- 2 Victim can demand seller authenticate documents via Section 5 (3).
- 3 Secondary evidence (e.g., certified bank copy) permitted if original lost (Section 13).

X RISKS & OBLIGATIONS

- 1 Victim must prove document alteration via forensic report (costly/time-consuming).
- 2 Altered documents are excluded, depriving victim of direct evidence.
- 3 Section 10 (3) requires expert testimony for electronic evidence.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Submit payment receipt as primary evidence (Section 4 (1)).
2. File affidavit under Section 5 (3) detailing alteration (e.g., "RC number mismatch") + forensic report.
3. For electronic evidence (e.g., WhatsApp chats), prove integrity via Section 10 (3) (digital certificate/expert testimony).
4. *Critical*: Apply under Section 5 (3) *before* evidence is tendered to avoid exclusion.

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